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Mardirossian Akaragian LLP v. KDA

Construction Inc., et al.

Special Motion to Strike (Anti-SLAPP)

BACKGROUND

Plaintiff Mardirossian

Akaragian LLP (the "Law Firm") filed this action on October 14, 2025, asserting one cause of action for defamation against KDA Construction Inc. ("KDA"), Dead Presidents, LLC ("DP"). The Law Firm's complaint alleges that KDA hired DP, a professional protesting company, to protest and shame the Law Firm even though the Law Firm had no relationship with KDA. KDA and DP move under Code of Civil Procedure section 425.16 to strike the Complaint. The court grants Plaintiff's request for judicial notice of various court records but not for the truth of hearsay matters asserted within those records. (Request for Judicial Notice, filed July 16, 2026, pp. 2:2-4:18.)

DISCUSSION

KDA's Lack of Standing

KDA

lacks standing to bring the instant motion because it was defaulted on December 8, 2025, and the default has not been set aside. Therefore, the Court deems this motion as being brought only by DP.

SLAPP's Prong One: Protected Activity

The parties dispute whether the allegedly defamatory statements were made in connection with a public issue or an issue of public interest within the meaning of the anti-SLAPP statute for which those statements contributed to or otherwise advanced that public discussion. DP argues that its statements that the Law Firm was unethical and untrustworthy were made in connection with a public issue or constituted an issue of public interest because (1) the Law Firm is a prominent California law firm that may impact the lives of many individuals, and (2) attorneys and law firms are required by law to be ethical. In opposition, the Law Firm argues that the statements concerned a dispute that was private, not a matter of public interest or significance. The Law Firm correctly observes, "The topic of the speech at issue is not about the legal profession in general or lawyers, but rather is about a specific law firm ... supposedly being unethical because it refuses to pay funds claimed owed by a builder." Because DP's statements do not contribute to a public discussion of a matter of public interest, DP does not satisfy the first prong; its motion to strike fails for that reason alone.

SLAPP's Prong Two: Probability of Prevailing

However, if one assumes DP did in fact satisfy the first prong by contributing to a public discussion of a matter of public interest, the burden shifts to the Law Firm to establish the Law Firm's probability of prevailing on the merits. To establish the likelihood of prevailing, the Law Firm must demonstrate that its complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence the Law Firm submits is credited. The court shall consider the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based. The court does not, however, weigh the defendants' evidence against the Law Firm, in terms of either credibility or persuasiveness. Rather, the defendants' evidence is considered with a view toward whether it defeats the Law Firm's evidence as a matter of law, such as by establishing a defense or the absence of a necessary element.

The

court finds that the Law Firm has met its burden of establishing the likelihood of prevailing on its defamation claim. Defamation involves (a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage. Here, the Law Firm's witness, Garo Mardirossian, attests to the following facts in support of the motion. He founded the Law Firm more than 40 years ago and the firm specializes in various legal areas including catastrophic personal injury cases. (Mardirossian Decl., ¶ 2.) "Separate from, and wholly unrelated to [his] legal practice, [he is] also the manager of a real estate investment company called Ararat Holdings LLC ('Ararat')," which is a title owner of three properties in Pacific Palisades.

(Id. ¶ 3.) In his sole capacity as Ararat's manager, Mardirossian retained KDA to undertake certain construction services in the three properties owned by Ararat. (Id. ¶ 4.) Subsequently, after Mardirossian informed KDA's counsel that KDA was barred from seeking compensation for its services because it was unlicensed, Mardirossian observed DP on social media, protesters standing in front of the Law Firm's premises, and posters displaying signs implying that the firm owed KDA \$106,482.77. (Id. ¶¶ 8-15.) However, the Law Firm has never had any dealings with or hired KDA to provide any goods or services or ever been retained by KDA. (Id. ¶ 5.)

DP

has not offered any evidence disproving the Law Firm's defamation claim. Therefore, the court finds that the Law Firm has met its burden under the second prong.

CONCLUSION

The

court denies the defendants' special motion to strike.

Defendants

shall give notice.